

Kaushalendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 November 2017 · WRIT - C No. 52260 of 2017 · **Writ disposed; petitioner relegated to Supply Code 2005 remedy.**

HEADNOTE

A writ challenging electricity bills, coupled with a general village-wide grievance and not filed as public interest litigation, was not entertained. The Division Bench held that the petitioner's billing complaint can be examined under the Uttar Pradesh Electricity Supply Code, 2005, and disposed of the writ with liberty to avail that remedy.

FACTUAL SUMMARY

Kaushalendra Singh petitioned the Allahabad High Court against electricity bills raised by the respondent department for energy he had consumed. The writ also contained a general statement of grievance on behalf of other residents of his village, rather than a confined challenge to his own assessment. The Division Bench treated the petition as not having been filed in public interest and declined to examine the billing dispute on the writ side.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

billing-complaint-forum

HOLDING

A writ petition challenging electricity bills which also raises a general grievance of village residents, and is not filed as public interest litigation, will not be entertained on the writ side. The petitioner's billing grievance can be examined under the Uttar Pradesh Electricity Supply Code, 2005; the writ is disposed of with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS RAISED AGAINST THE PETITIONER WERE EXCESSIVE OR OTHERWISE ILLEGAL.

The Court did not examine the bills on merits and left the grievance to the Supply Code 2005. ¶ 1